

## 25STCV29104 25STCV29104

County: los-angeles

Division: Civil Law and Motion

Department: 730

Hearing date: 2026-06-24

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Case Number: 25STCV29104 Hearing Date: June 24, 2026 Dept: 730

TENTATIVE

### The Complaint

On October 6, 2025, Plaintiff Collect Access LLC ("Plaintiff") filed a Complaint against Defendant James Charles Lajevic a/k/a James Charles La Jevic a/k/a Jim A Lajavic a/k/a Jay Lajevic a/k/a James Talak d/b/a James C. Lajevic DMD ("Defendant Lajevic") and DOES 1 through 10 (collectively, "Defendants"), alleging causes of action for: (1) Breach of Contract; (2) Money Due on Open Book Account; and (3) Money Due on an Account Stated. Specifically, the Complaint alleged that Defendant Lajevic entered into a Equipment Finance Agreement with Plaintiff's Assignor Financial Pacific Leasing, Inc. on or about August 15, 2021, wherein he agreed to pay Financial Pacific Leasing, Inc. a sum of \$66,795.36. (Compl., ¶¶9-11.) On or about February 29, 2024, Defendant Lajevic breached the agreement by failing to make payment as agreed, resulting in a due balance of \$44,915.84. (Id., ¶12) or \$39,993.14 (Id., ¶22 [listing the due balance as \$39,993.14].)

### Default Judgment

All unnamed Doe defendants have been dismissed.

In support of the default judgment package, Plaintiff submits the declaration of Moe Essa, its Legal Manager and Custodian of Records. Mr. Essa states that Plaintiff's Assignor Financial Pacific Leasing Inc. entered into an Equipment Finance Agreement with Defendant Lajevic. (Essa Decl., ¶11, Ex. A.) Plaintiff also submitted the declaration of its counsel of record, Tappan Zee, Esq., attesting costs incurred, providing the interest calculation, and providing the attorney's fee calculation in accordance with Local Rule 3.214. (Zee Decl., ¶¶2-8.) Nonetheless, Plaintiff fails to attach any agreement between Financial Pacific Leasing Inc. and Plaintiff demonstrating that the Equipment Finance Agreement was assigned to Plaintiff. Nor is there a declaration from Mr. Essa or another custodian of records for Plaintiff indicating a true and correct copy of such assignment agreement has been lost, misplaced, or damaged.

### Conclusion

Based on the foregoing, Plaintiff Collect Access LLC's request for default judgment submitted on May 15, 2026 is DENIED without prejudice.